

**BEFORE THE BEHAVIORAL HEALTH PROFESSIONALS
BOARD OF THE STATE OF IOWA**

IN THE MATTER OF Kelly Sachau License No. 106139 RESPONDENT	CASE NOS.: 21-0322, 23-0107, and 24-0039 COMBINED STATEMENT OF CHARGES, SETTLEMENT AGREEMENT, AND FINAL ORDER
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COME NOW the Iowa Board of Behavioral Health Professionals (“Board”) and Kelly Sachau (“Respondent”) and enter into this combined Statement of Charges and Settlement Agreement and Final Order (“Order”) pursuant to Iowa Code sections 17A.10(2), 272C.3(4), and 272C.10 and 481 IAC 506.33.

A. BACKGROUND

1. **Iowa License.** Respondent was issued Iowa mental health counselor license number 106139 on December 23, 2020. Respondent’s Iowa mental health counseling license is active and will next expire on September 30, 2026.
2. **Practice Setting.** Respondent is an Iowa licensed mental health counselor who practiced mental health counseling in Sioux City, Iowa, during the time period relevant to these allegations. Respondent currently lives in the State of Iowa.
3. **Jurisdiction.** The Board has jurisdiction in this matter pursuant to Iowa Code chapter 154D.
4. **Allegations.** On or about the date of April 7, 2021, to present, Respondent maintained a dual relationship with Patient A. Patient A received therapy services from Respondent. Respondent maintained and continued to maintain a personal relationship with Patient A. On or

about October 31, 2023, after terminating her contractor relationship with a specific practice group, Respondent took her clients' therapy records and notes with her to her new practice without her clients' written consent. Respondent failed to properly store records to ensure reasonable future access, maintain records in accordance with federal and state laws and dispose of client records and other sensitive materials in a manner which protected her clients' confidentiality.

B. STATEMENT OF CHARGES

COUNT I

5. Respondent is charged under Iowa Administrative Code rule 481-893.1(b) with failing to comply with the Code of Ethics of the American Counseling Association, specifically section A.6.b, "Extending Counseling Boundaries."

COUNT II

6. Respondent is charged under Iowa Administrative Code rule 481-893.1(b) with failing to comply with the Code of Ethics of the American Counseling Association, specifically section B.6.g, "Disclosure or Transfer."

COUNT III

7. Respondent is charged under Iowa Administrative Code rule 481-893.1(b) with failing to comply with the Code of Ethics of the American Counseling Association, specifically section B.6.h, "Storage and Disposal After Termination."

C. SETTLEMENT AGREEMENT

8. Respondent denies fault or wrongdoing and denies the allegations resulting in this Statement of Charges. Specifically, Respondent denies having a dual relationship with Patient A and denies that she failed to properly transfer, store, and maintain the confidentiality of client

records. Respondent acknowledges that the allegations stated above, if proven in a contested case hearing, would constitute grounds for the discipline agreed to in this Order.

9. To resolve this matter without proceeding to hearing, Respondent shall be placed on probation for a period of two years subject to the following terms and conditions:

- a. Respondent shall engage a practice monitor to ensure she is complying with appropriate recordkeeping practices during the course of her two-year probationary period;
- b. Respondent shall provide the practice monitor with a selection of client records for the monitor's review quarterly as requested by the practice monitor to evaluate the Respondent's records for completeness;
- c. Respondent's practice monitor shall submit a quarterly report to the Board evaluating the quality of Respondent's recordkeeping practices;
- d. Respondent shall return all client records which were taken from her previous employer within thirty days of the issuance of this Order;
- e. Respondent shall complete six hours of continuing education in the area of professional boundaries;
- f. Respondent shall complete six hours of continuing education in the area of clinical documentation practices and requirements;
- g. Respondent shall complete six hours of continuing education in the area of ethics; and
- h. Respondent shall pay a civil penalty in the amount of \$750.00.

10. In entering this Order, Respondent acknowledges the following:

- a. This Order is subject to the approval of the Board and will have no force or effect if it is not accepted by the Board.
- b. Counsel for the State will present this Order to the Board *ex parte*.
- c. I have the right to be represented by counsel in this matter. I was represented by Attorney Allyson Dirksen in the negotiation of this settlement.
- d. I understand I have an opportunity to be heard and to contest the allegations against me in a formal hearing before the Board and that, by waiving the formal hearing, I waive my right to challenge the allegations against me and all attendant rights, including the right to seek judicial review of the Board's actions.
- e. I waive my ability to review the investigative file in this case.
- f. I understand this Order will be part of my permanent licensure file and may be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.
- g. I am voluntarily entering into this Order.
- h. Failure to comply with the provisions of this Order shall be grounds for further disciplinary action pursuant to Iowa Code § 272C.3(2)(a).
- i. I understand the Board is required by federal law to report this Order to the National Practitioner Databank. The report to the database will reflect the language included in this Order.
- j. I understand I am responsible for all expenses incurred to comply with the conditions and requirements of this Order.

12. Respondent shall submit a copy of this Order to all licensing boards where Respondent

holds a license, whether active or not, within **THIRTY DAYS** of the date of the Board's approval of this Order.

13. This Order constitutes discipline against Respondent and is the final agency action in a contested case pursuant to Iowa Code section 17A.10.

14. This Order shall not preclude the Board from taking additional action against Respondent should Respondent violate laws, rules, or standards of practice administered by the Board in the future.

15. This Order becomes a public record available for inspection and copying upon execution in accordance with the requirements of Iowa Code Chapters 17A, 22, and 272C.

16. The Board's approval of this Order shall constitute a **Final Order** of the Board.

D. FINAL ORDER

IT IS THEREFORE ORDERED: Respondent shall be placed on **PROBATION** for a period of two years subject to the following terms and conditions:

- a. Respondent shall engage a practice monitor to ensure she is complying with appropriate recordkeeping practices during the course of her two-year probationary period;
- b. Respondent shall provide the practice monitor with a selection of client records for the monitor's review quarterly as requested by the practice monitor to evaluate the Respondent's records for completeness;
- c. Respondent's practice monitor shall submit a quarterly report to the Board evaluating the quality of Respondent's recordkeeping practices;
- d. Respondent shall return all client records which were taken from her previous

employer within thirty days of the issuance of this Order;

- e. Within sixty (60) days of the issuance of this Order, Respondent shall complete six hours of continuing education in each of the following subject-matter areas:

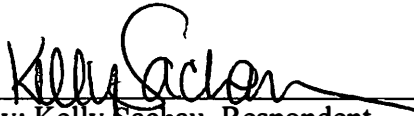
- i. Professional Boundaries;
- ii. General Ethics; and
- iii. Clinical documentation practices and requirements; and

- f. Respondent shall pay a civil penalty in the amount of \$750.00. Respondent shall make this check payable to the "Treasurer of the State of Iowa" and shall remit this payment within thirty days of the issuance of this Order.

g.

FOR THE RESPONDENT:

Voluntarily agreed to and accepted by Kelly Sachau on this 10th day of May, 2025.


By: Kelly Sachau, Respondent

FOR THE IOWA BOARD OF BEHAVIORAL HEALTH PROFESSIONALS:

Voluntarily agreed to and accepted by the **IOWA BOARD OF BEHAVIORAL HEALTH PROFESSIONALS** on this 27th day of May, 2025.



Aaron Culley, Chair
Iowa Board of Behavioral Health Professionals